

Nareshwar Nath Bhargava v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 17 January 2024 · 2024:AHC:7951-DB · WRIT - C No. - 40783 of 2023 · **Petition disposed; clause 6.5 objection to be decided by speaking order.**

HEADNOTE

Writ challenging the electricity bill for connection No. 4772265963 disposed. The billing dispute must be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner may file an objection before respondent No. 3 within two weeks, to be decided by a speaking order within four weeks thereafter.

FACTUAL SUMMARY

Nareshwar Nath Bhargava filed Writ-C No. 40783 of 2023 in the Allahabad High Court against the State of Uttar Pradesh and two others, challenging the electricity bill for connection No. 4772265963. After listings in November and December 2023, including a direction to place the matter before a bench of which Justice Siddhartha Varma was not a member, the petition came up on 17 January 2024. Counsel for the Electricity Department then submitted that the billing dispute had to be raised under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Billing dispute relegated to a clause 6.5 objection

HOLDING

A challenge to an electricity bill must be raised in accordance with clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner is permitted to file an objection against the bill before respondent No. 3 within two weeks, and respondent No. 3 shall decide that objection by a speaking order within the next four weeks. The writ stands disposed of on that basis. ¶ 1-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the electricity bill was disposed of, the petitioner being permitted to file a clause 6.5 objection before respondent No. 3 within two weeks. ¶ 2-4

clause-6.5-statutory-remedy-disputed-bill The Court accepted that the dispute over the bill for connection No. 4772265963 had to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL FOR CONNECTION NO. 4772265963

Left to respondent No. 3, which is to decide the petitioner's objection by a speaking order. ¶ 2-4